

**United States Department of Agriculture
Sole Source Justification under
Simplified Procedures for Certain Commercial Items (FAR 13.5)
Procurement No. 12639525Q0056**

1. Identification of the agency and the contracting activity.

1a. Requesting Activity Agency:

USDA APHIS VS NVSL
1920 Dayton Ave
Ames IA 50010

1b. Contracting Activity:

USDA APHIS MRP AAMD
250 Marquette Ave, Suite 410
Minneapolis, Minnesota 55401

2. The nature and/or description of the action being approved.

The USDA proposes to award an indefinite delivery indefinite quantity commercial supply contract with Tetracore, Inc using the simplified procedures for certain commercial items under Federal Acquisition Regulation (FAR) Part 13.5. The acquisition will result in the award of an IDIQ supply contract for Foot and Mouth Disease and African Swine Fever disease Testing Kits. The intent is to purchase up to 500 test kits for each disease at contract award, with the ability to purchase similar quantities if needed annually over the next 3 years.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value).

The National Animal Vaccine and Veterinary Countermeasures Bank (NAVVCB) serves as a strategic reserve of countermeasures to support Veterinary Services' (VS) animal health readiness and response. The NAVVCB was created to expand the number of doses of foot and mouth disease (FMD) vaccine available to the United States and support procurement of countermeasures and diagnostics for other high-consequence transboundary animal diseases. Foot and mouth disease is a highly contagious disease of livestock that represents one of the greatest threats to the United States agricultural sector. As a world leader in agriculture, an outbreak of FMD would have catastrophic and long-term economic and trade consequences.

African swine fever (ASF) is a disease that results in high morbidity and high mortality in swine species. An introduction of African Swine Fever Virus (ASFV) in the US would cause production losses and trade limitations leading to severe economic consequences. Since the detection of ASF in the Dominican Republic in 2021 and its persistence on the island of Hispaniola, the US has faced increased risk of ASF entering the mainland and US territories. To protect US national and agricultural security, the USDA maintains countermeasures within the NAVVCB in the form of diagnostics and reagents that will be a critical component of a rapid, effective response in the event of an outbreak.

- 1) The product required is the FMD Virus RNA Test Kit (VetAlert™ FMD RT-PCR with IC). A purchase of 500 kits which is a total of 48,000 reactions is needed and has an estimated value of \$352,800.00
- 2) Given the geographical proximity of the current ASF outbreak in the Caribbean, the US remains at risk of ASF entry. The product, African Swine Fever Virus (ASFV) DNA Test Kit (VetAlert™ ASF RT-PCR with IC) is required. The first purchase of 500 kits which is a total of 48,000 reactions is needed and has an estimated value of \$352,800.00

4. The statutory authority permitting other than full and open competition.

41 U.S.C § 1901 - Simplified Acquisition Procedures up to \$7.5 million, as authorized by FAR 13.500(a) and implemented by FAR 13.501(a).

5. Supporting rationale demonstrating the unique qualifications of the proposed contractor or the nature of the action requiring the use of the authority.

FMD Kits:

This product is needed to perform the real-time PCR for the detection FMD viral RNA extracted from serum and epithelial samples collected from cattle, swine, and sheep. The FMD Virus RNA Test Kit test is a real-time PCR method that utilizes specific sets of forward and reverse primers, an inhibition control and fluorogenic probe hydrolysis chemistry for the detection of FMD Virus RNA in samples. The test has specific sets of oligonucleotide primers and FAM probes that target the 3D gene, one of which is referenced in chapter 3.1.8 of the WOAHP Terrestrial Manual [WOAH Manual of Diagnostic Tests and Vaccines for Terrestrial Animals, Eighth Edition, Chapter 3.1.8. Foot and Mouth Disease (Infection with Foot and Mouth Disease Virus), page 1-34, 2022]. This kit satisfies 9 CFR § 102.1 and 21 U.S.C. § 151as well as FAR 25 41 USC Ch 83 as it is the only USDA licensed diagnostic product for detecting FMDV RNA.

ASF Kits:

According to Chapter 3.8.1 in the WOAHP Terrestrial Manual, RT-PCR is recommended for confirmation of clinical cases, population and individual freedom of infection testing, and surveillance of ASFV [WOAH Manual of Diagnostic Tests and Vaccines for Terrestrial Animals, Eighth Edition, Chapter 3.9.1. African Swine Fever (infection with African Swine Fever virus), page 1-18, 2024]. The ASFV DNA Test Kit is required to detect ASFV viral DNA extracted from spleen and whole blood collected in EDTA from swine. The ASFV PCR test is a real-time PCR method that utilizes two independent, specific sets of forward and reverse primers, an inhibition control and fluorogenic probe hydrolysis chemistry for the detection of ASF viral DNA in samples. The test has specific sets of oligonucleotide primers and FAM probes that target the VP72 gene of the ASFV. This kit satisfies 9 CFR § 102.1 and 21 U.S.C. § 151as well as FAR 25 41 USC Ch 83 as it is the only USDA licensed diagnostic product for ASFV DNA detection that is manufactured in the United States. Furthermore, it has been implemented by the National Animal Health Laboratory Network (NAHLN) and can be used by 12 labs across the country in the event of an outbreak.

The ASFV DNA Diagnostic Test has been validated in studies with multiple study partners including: (1) Centro de Investigación en Sanidad Animal, Instituto Nacional De Investigaciones Agrarias (CISA-INIA, Spain); (2) The National Veterinary Institute (SVA, Sweden); (3) Sciensano (Belgium); and other International and US laboratories, where the test demonstrated equivalent performance compared to the reference test methods used by the study partners. There is no other kit that is licensed and available in the US for distribution which has been validated by study partners.

Additionally, Tetracore holds a USDA manufacturing license, #644 and has the physical space and Quality Management System in place to manage bulk storage requirements. Tetracore also has the surge capacity in production to meet this bulk order in very short notice

6. A description of efforts made to ensure offers are solicited from as many potential sources as is practicable.

In accordance with FAR 5.201, this sole source justification and approval will be posted on the Contract Opportunities website.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The USDA, APHIS has purchased this product for many years so the agency has historical pricing which can be used in determining price reasonableness. No contract will be issued until the contractor price has been determined to be fair and reasonable.

8. A description of the market research conducted and the results or a statement of the reason Market Research was not conducted.

The government is aware of the market conditions and availability of this licensed products from previous purchases. Market research has been conducted on prior purchases and will be further conducted for this solicitation to establish a contract. It has been determined the **VetAlert™ FMD RT-PCR with IC** product was identified as the only the only real time PCR Kit which is licensed by USDA for testing FMDV and available for distribution within the US. Furthermore, the FMD Virus RNA Test Kit has been validated the National Center for Foreign Animal Diseases (NCFAD) in Winnipeg, Canada, and performed well compared to their reference test methods (Yeo, Yan, Nyachoti, Rauh, Callahan, and Nron. 2020. Detection of Foot-and-Mouth Disease Virus in Swine Meat Juice. Pathogens. 9, 424. doi:10.3390/pathogens9060424) and the **African Swine Fever Virus (ASFV) DNA Test Kit (VetAlert™ ASF RT-PCR with IC)** was identified as the only the only real time PCR Kit which is licensed by USDA for testing ASFV and available for distribution within the US.

9. Any other facts supporting the use of other than full and open competition.

No additional supporting facts.

10. A listing of the sources, if any, that expressed a written interest in the acquisition.

No sources have expressed an interest in the acquisition.

11. A statement of actions, if any, the agency may take to remove or overcome any barriers to competition if subsequent acquisitions are anticipated.

Until other vendors become available and licensed to manufacture these products the USDA will be required to continue purchasing the product from Tetracore. However, through posting of notices such as the sole source justification it will perhaps lead to an interest from other vendors

Certifications & Approvals

Supporting data which form the basis for and included in this justification are certified accurate and complete.

Amanda Kortum
Veterinary Medical Officer
USDA APHIS VS

The information contained in this Justification for Other Than Full and Open Competition is certified accurate and complete to the best of my knowledge and belief.

Jason Wilking
Contracting Officer
USDA APHIS MRPBS AAMD

Additional Reviews & Approvals

Advocate for competition for the procuring activity (if over \$750,000, but not exceeding \$15 million). I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Therefore, unless additional approvals are required as prescribed below, as advocate for competition for the procuring activity/MASCO, I hereby approve this justification. If required, my approval constitutes clearance for submission to the Head of the Procuring Activity.

Larry Nelson
Title: Procuring Activity Advocate for Competition

